

AS INTRODUCED IN LOK SABHA ON
~~TO BE INTRODUCED IN LOK SABHA~~

21 AUG 1969

78
20/8/69

Bill No. 78 of 1969

**THE CONSTITUTION (TWENTY-THIRD AMENDMENT)
BILL, 1969**

A

BILL

further to amend the Constitution of India.

BE it enacted by Parliament in the Twentieth Year of the Republic of India as follows:—

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|--|---------------------------|
| 1. This Act may be called the Constitution, (Twenty-third Amendment) Act, 1969. | Short title. |
| 5 2. In article 330 of the Constitution, in sub-clause (b) of clause (1), for the words "except the Scheduled Tribes in the tribal areas of Assam", the words "except the Scheduled Tribes in the tribal areas of Assam and in Nagaland" shall be substituted. | Amendment of article 330. |
| 10 3. In article 332 of the Constitution, in clause (1), for the words "except the Scheduled Tribes in the tribal areas of Assam", the words "except the Scheduled Tribes in the tribal areas of Assam and in Nagaland" shall be substituted. | Amendment of article 332. |
| 15 4. (1) In article 333 of the Constitution, for the words "nominate such number of members of the community to the Assembly as he considers appropriate", the words "nominate one member of that community to the Assembly" shall be substituted. | Amendment of article 333. |
| 20 (2) Nothing contained in sub-section (1) shall affect any representation of the Anglo-Indian community in the Legislative Assembly of any State existing at the commencement of this Act until the dissolution of that Assembly. | |
| 5. In article 334 of the Constitution, for the words "twenty years", the words "thirty years" shall be substituted. | Amendment of article 334. |

FINANCIAL MEMORANDUM

Clause 5 of the Bill seeks to amend article 334 of the Constitution to provide for the continuance of the representation of the Anglo-Indian community in the House of the People and in the Legislative Assemblies of the States by nomination for a further period of ten years from 28th January, 1970. It is estimated that the recurring expenditure on the salaries and allowances and other concessions, of the two representatives of the Anglo-Indian community in the House of the People under article 331, will be of the order of Rs. 50,000 per annum.

2. There will be no non-recurring expenditure.

ANNEXURE

EXTRACTS FROM THE CONSTITUTION OF INDIA

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PART XVI

SPECIAL PROVISIONS RELATING TO CERTAIN CLASSES

330. (1) Seats shall be reserved in the House of the People for—

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(b) the Scheduled Tribes except the Scheduled Tribes in the tribal areas of Assam; and

* * * * *

Reservation of seats for Scheduled Castes and Scheduled Tribes in the House of the People.

332. (1) Seats shall be reserved for the Scheduled Castes and the Scheduled Tribes, except the Scheduled Tribes in the tribal areas of Assam, in the Legislative Assembly of every State.

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Reservation of seats for Scheduled Castes and Scheduled Tribes in the Legislative Assemblies of the States.

333. Notwithstanding anything in article 170, the Governor of a State may, if he is of opinion that the Anglo-Indian community needs representation in the Legislative Assembly of the State and is not adequately represented therein, nominate such number of members of the community to the Assembly as he considers appropriate.

Representation of the Anglo-Indian community in the Legislative Assemblies of the States.

334. Notwithstanding anything in the foregoing provisions of this Part, the provisions of this Constitution relating to—

(a) the reservation of seats for the Scheduled Castes and the Scheduled Tribes in the House of the People and in the Legislative Assemblies of the States; and

(b) the representation of the Anglo-Indian community in the House of the People and in the Legislative Assemblies of the States by nomination,

Reservation of seats and special representation to cease after twenty years.

shall cease to have effect on the expiration of a period of twenty years from the commencement of this Constitution:

Provided that nothing in this article shall affect any representation in the House of the People or in the Legislative Assembly of a State until the dissolution of the then existing House or Assembly, as the case may be.

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STATEMENT OF OBJECTS AND REASONS

Article 334 of the Constitution lays down that the provisions of the Constitution relating to the reservation of seats for the Scheduled Castes and Scheduled Tribes and the representation of the Anglo-Indian community by nomination in the House of the People and the Legislative Assemblies of the States shall cease to have effect on the expiration of a period of twenty years from the commencement of the Constitution. Although the Scheduled Castes and Scheduled Tribes have made considerable progress in the last twenty years, the reasons which weighed with the Constituent Assembly in making provisions with regard to the aforesaid reservation of seats and nomination of members, have not ceased to exist. It is, therefore, proposed to continue the reservation for the Scheduled Castes and the Scheduled Tribes and the representation of Anglo-Indians by nomination for a further period of ten years.

2. More than ninety per cent. of the population of the State of Nagaland, which came into being in 1963, is tribal. It would be anomalous to make provision for reservation for Scheduled Castes and Scheduled Tribes in Legislatures in the States where they are in a majority. It is, therefore, proposed, as desired by the Government of Nagaland, not to make any reservation for the Scheduled Tribes in Nagaland either in the House of the People or in the State Legislative Assembly. Articles 330 and 332 of the Constitution are being amended for this purpose.

3. Under article 333 of the Constitution, the number of Anglo-Indians, who may be nominated to the State Legislative Assemblies, is left to the discretion of the Governor. It is now proposed to amend that article so as to provide that not more than one Anglo-Indian should be nominated by the Governor to any State Legislative Assembly. This amendment will not however affect representation of the Anglo-Indian community in the existing Legislative Assemblies until their dissolution.

NEW DELHI;
The 11th August, 1969.

P. GOVINDA MENON.

LOK SABHA

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BILL
further to amend the Constitution of India.

*(Shri P. Govinda Menon, Minister of Law
and Social Welfare.)*